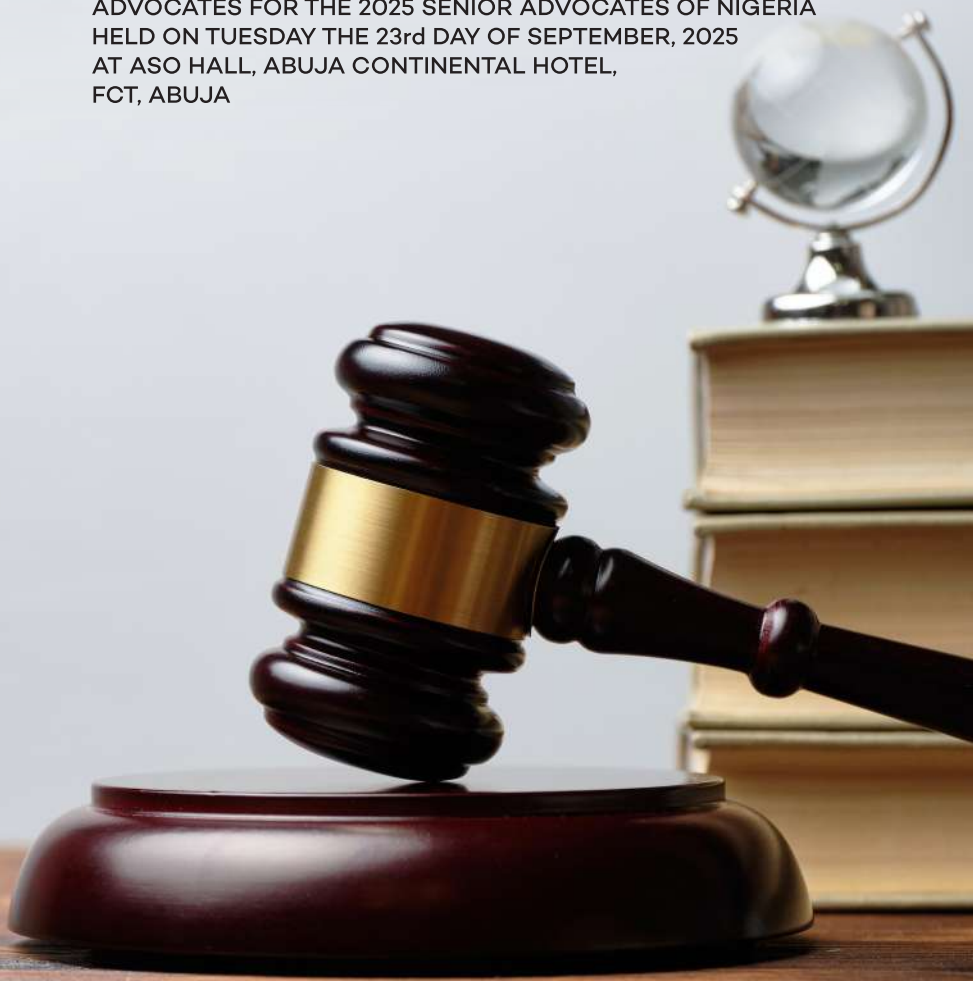




KEYNOTE ADDRESS OF
THE HONOURABLE
CHIEF JUDGE OF OGUN STATE,

HON. JUSTICE M. A. DIPEOLU, FICMC, FHNr,

DELIVERED AT THE PRE – SWEARING IN INDUCTION
CEREMONY ORGANIZED BY THE BODY OF SENIOR
ADVOCATES FOR THE 2025 SENIOR ADVOCATES OF NIGERIA
HELD ON TUESDAY THE 23rd DAY OF SEPTEMBER, 2025
AT ASO HALL, ABUJA CONTINENTAL HOTEL,
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PROTOCOLS

Let me start by congratulating all of you, the new Silks, on your outstanding success. The status of Senior Advocate of Nigeria is more than just a title; it is a solemn agreement with the Nigerian people, the judiciary, and the legal profession. You are no longer merely advocates; you are leaders, standard-bearers, and stewards of our wonderful profession's best traditions. Indeed, as the theme of this ceremony infers, you are heirs to a legacy of distinction and the duty to preserve that legacy now rests squarely on your shoulders.

I am honoured to be here today to discuss a subject that is central to our legal system: access to justice and the crucial, but strongly debated role that Nigeria's Senior Advocates play in promoting or impeding it. However, I speak to you not only as Chief Judge, but also as a participant in the administration of justice. My perspective comes from the Bench, which provides a clear picture of what works, what fails, and what is badly needed to guarantee that our courts actually serve as channels of accessible, fair, and speedy justice for all Nigerians. There is much more to the idea of "access to justice" than just having a courthouse. It includes the right to a fair and effective legal system, the right to knowledgeable legal counsel irrespective of one's financial situation, and the right to prompt and economical conflict resolution. It is the cornerstone that supports the public's faith in the legal system.

It is therefore imperative to look at the relationship between this core idea and the Senior Advocate of Nigeria (SAN), - the pinnacle of legal professional perfection. In doing this, kindly permit me to examine the origin of the Senior Advocate of Nigeria, the rules governing the selection of candidates for the rank, the disputes that have surrounded the selection, the position of the SAN in the judicial system and actions of the SAN in court.

1. The Origin and Evolution of the Title “Senior Advocate of Nigeria”

The theme of this Pre – Swearing In Induction ceremony is: The Silk Rank: Preserving the Legacy of Distinction. This speaks to the acknowledgement of the noble history of the rank. I believe that it is therefore necessary to take a look into the origin and evolution of the rank in order to understand what it is that is to be preserved. The rank of Senior Advocate of Nigeria (SAN) was established in 1975, following the model of the British Queen’s Counsel (QC) now King’s Counsel (KC). Its creation was formalized by the Legal Practitioners Act of 1975, with the first set of Senior Advocate of Nigeria appointed on 3rd April, 1975. The intention was noble: to recognize and honour legal practitioners who have distinguished themselves by excellence in the legal profession, their commitment to professional ethics, and their important contributions to the advancement of Nigerian law.

In order to encourage younger solicitors to pursue the greatest levels of advocacy, education, and integrity, the title was intended to act as a badge of distinction and excellence. Fundamentally, it was intended to serve as a stimulant for raising the standard of legal practice and, consequently, the administration of justice. The first two (2) Nigerians to be conferred with the rank were Chief F. R. A. Williams SAN and Dr. N. B. Graham – Douglas SAN both now of blessed memory. From

these two pioneer Senior Advocates, the recognition has now been extended to Eight Hundred and Ninety-Eight (898) legal practitioners as at 2024.

2. Guidelines for the Appointment of SAN

The Legal Practitioners' Privileges Committee (LPPC), which is led by the Chief Justice of Nigeria and consists of another senior justice of the Supreme Court, President of the Court of Appeal, Some Chief Judges and other legal professionals oversees the appointment procedure for the rank of Senior Advocate of Nigeria. In an effort to guarantee that only the most worthy be promoted, the rules have changed over time to become stricter and more open. The extant regulation for the conferment of the award is the 2022 Guidelines for the Conferment of the Rank of Senior Advocate of Nigeria and for Related Matters. It may interest you to know that I was a member of the Review Committee. These guidelines were issued by the Chief Justice of Nigeria on behalf of the Legal Practitioners' Privileges Committee (LPPC) in October 2022. Typically, the LPPC considers the following:

- Professional Learning and Competence: Exhibited by the volume and complexity of cases handled, especially in higher courts.
- Contribution to Legal Development: By means of noteworthy scholarly works or influential, seminal cases that have influenced jurisprudence.

Professional Conduct: A track record of good standing with the Bar, devoid of any ethical or misconduct violations.

- **Character:** A reputation for honesty, integrity, and fairness.
- **Pro Bono Work:** Increasingly, involvement in pro bono services is considered a vital criterion, linking the privilege of rank directly to the service of justice for the indigent.
- **Mentorship:** The ability to provide guidance, leadership and mentorship to young lawyers and law students also counts towards the conferment of the rank of Senior Advocate of Nigeria.

Despite these robust guidelines, the process has not been without its criticisms, leading to significant protests.

3. Protests on the Appointment of SAN by BOSAN

The protest by the Body of Senior Advocates of Nigeria (BOSAN) in recent years underscores the deep-seated concerns within the inner sanctum of the profession itself. BOSAN's grievances have primarily centred on two issues:

1. **Alleged Dilution of Standards:** A fear that the sheer number of lawyers being awarded the rank

annually risks eroding its exclusivity and prestige. The concern is that quantitative metrics might sometimes overshadow qualitative judgments on excellence and integrity.

2. Transparency and Fairness: While the LPPC has made strides, there remains a perception in some quarters of a lack of full transparency in the selection process, leading to suspicions of favouritism or connections trumping merit.

This internal critique from the very body of Senior Advocates is healthy. It demonstrates a collective desire to protect the sanctity of the rank and ensure it remains a true symbol of excellence, which is intrinsically linked to the quality of justice delivered to the public.

However, in the last few weeks, the media has been agog with protests and counter positions by Legal Practitioners including Senior Advocates over the involvement of the security agencies in the screening of candidates for the conferment of the rank. This requirement, which is contained in Rule 23 (2) of the 2022 Guidelines has been applied in the conferment process for the award of the rank since the Guidelines were issued. One is at a loss as to why there would be any objection as to an inquiry into whether a prospective candidate has been the subject of any petition, prosecution or conviction. Surely, the requirement is one which is geared towards ensuring that the sanctity

of the rank is preserved as stated earlier.

4. Hierarchy and Precedence: Body of Benchers, NBA Leadership, SAN.

This is a matter of protocol rooted in tradition and law. The legal profession is known for its time-honoured values of respect, protocol and seniority. The Body of Benchers is the highest legal regulatory body in Nigeria, responsible for the call to the Bar and disciplinary matters. (See Sections 3 and 12 of the LPA). Its membership includes the Chief Justice of Nigeria, Presiding Justices of the Court of Appeal, Chief Judges, the Attorneys-General, President of the NBA and some Senior Advocates among others. A Senior Advocate, by virtue of appointment, can be a member of the Body of Benchers. However, the leadership of the Body (the Chairman and Vice-Chairman) is elected from among its members. Therefore, the elected Chairman of the Body of Benchers, who may or may not be a SAN, takes precedence over all other members, including those who are Senior Advocate of Nigeria. The office supersedes the rank. Further, by virtue of being a member of the Body of Benchers, a Bencher takes precedence over a Senior Advocate just as a Life Bencher takes precedence over a Bencher.

President/Chairman of NBA: The Nigerian Bar Association is the premier professional association for all lawyers. Its elected President or a Branch Chairman

holds an official office representing the entire Bar. In matters of Bar representation and protocol, the elected President of the NBA takes precedence over a Senior Advocate who holds no such elective office. The mandate of the electorate confers this authority. A Senior Advocate who is also the NBA President would take precedence by virtue of their office, not their rank.

This distinction is crucial. It reminds us that while the Senior Advocate rank is a personal privilege and honour, leadership within the Bar and the legal community is derived from a democratic mandate to serve the collective. It is also important to bear the foregoing in mind in view of the rather unpalatable and needless power/superiority tussles that have been witnessed in the legal profession in recent years.

5. The Justice Gap in the Nigerian Legal System: The Role of Senior Advocates.

This is perhaps the most practical area where the role of Senior Advocates intersects directly with access to justice for the litigant. In Nigeria, the concept of “access to justice” is frequently a theoretical ideal rather than a lived reality for millions. The difficulties are well known: massive dockets, procedural delays, huge litigation costs, and, in certain cases, a crippling lack of public trust. This justice gap undermines the social contract and erodes the very foundation of our society. The High Court, which I have the privilege of leading in

Ogun State, is intended to be the foundation of justice for the average man. Nonetheless, it is frequently viewed as a perplexing organisation.

Your role as Senior Advocates is important to bridging this gap. You now have the authority and influence to change this perception into one of optimism and efficiency. On the positive side, the involvement of a Senior Advocate often brings a depth of experience and forensic skill that can assist the court in arriving at a just decision more efficiently. Your expertise can unravel complex legal issues which ideally should translate to saving judicial time. However, experience has shown that this is often not the case. There have been negative perceptions which are a cause for grave concern with attendant negative consequences. The letter inviting me to be a facilitator at this ceremony requested practical, illustrative examples. Allow me to provide them:

I will start with a recent decision from the Apex Court in the land. In *Dikio v NSITF Mgt. Board* (2025) 14 NWLR (Pt. 2004) 129, 166-7, the Supreme Court Per Abiru JSC had the following to say:

“This is an appeal that should never have been filed. From the records of proceedings, the lead counsel to the appellants in this case from the High Court to this court is a Senior Advocate of Nigeria. It is presumed that by reason of the high office he holds, a Senior Advocate of Nigeria must have knowledge

of the rudimentary and basic principles of the Law of Contract. This knowledge, with respect, was not displayed in the conduct of this case from the High Court up to this court. The court concedes that both the notices of appeal and the appellants' briefs of arguments filed in this court and in the Court of Appeal were signed by a junior of the learned Silk in Chambers, but the name of the learned Silk was endorsed on both of the processes as one of the lawyers that settled them. This court wants to believe that the name of the learned Silk was just inserted on the notices of appeal and the briefs of arguments and that he did not take part in strategizing for both appeals and did not read the final copies of the briefs of arguments before they were filed.

“This court is sure that if the learned Silk had studied the judgment of the High Court and read the notices of appeal and the briefs of arguments filed in the Court of Appeal and in this appeal, he would have seen that both appeals were pointless as the High Court did a thorough and an excellent job in analysing and disposing of the claims of the appellants. This would have saved this court the agony of hearing an appeal that requires a mere restatement of the elementary principles of the law of contract taught to second year university students to resolve. Part of the attendant responsibilities and expectations that should come with the conferment of the rank of Senior Advocate of Nigeria are that counsel so conferred would leave the

realm of the lawyers that engage the scarce judicial time of the courts with mundane and humdrum cases that require only restatements of elementary legal principles to dispense with, and that cases coming to court from the Chambers of such counsel would be one that would excite and challenge existing legal principles and seek to create new jurisprudence. This appeal, and indeed the appeal filed in the Court of Appeal, are not a good testament for the rank of Senior Advocate of Nigeria.”

The foregoing is a prime illustration of the expectations and obligations which all of you who now hold this esteemed rank carry. Permit me to touch on the following as well:

Taking Over Cases: The practice of a Senior Advocate “taking over” a case from a less senior lawyer mid-stream can be disruptive. While sometimes necessary for strategic reasons, it often leads to adjournments to allow the new counsel to familiarise themselves with the matter. This causes delay, increases costs for the client, and clogs the court’s docket—all antithetical to access to justice.

Sharp Practices: There have been allegations of bribery as well as corruption levelled against Senior Advocates. Some of these allegations have led to criminal convictions as well as the loss of the rank. Regrettably, some Senior Advocates have been associated with tactics designed to frustrate rather than facilitate

justice. These include:

Forum Shopping: Using their influence to manipulate the judicial system.

Unnecessary Adjournments: Seeking adjournments for strategic reasons rather than necessity, disrespecting the court's time and the opponent's resources.

Exorbitant Fees: Charging fees so prohibitively high that they effectively deny justice to all but the wealthiest clients, creating a two-tiered system of justice.

Touting and Case-Brokering: Some law firms are accused of using the Senior Advocate title as a magnet for cases, which are then handled entirely by junior lawyers without adequate supervision.

These practices, by a few bad eggs, tarnish the entire institution and directly impede access to justice. They foster a public perception that justice is for sale to the highest bidder.

However, Senior Advocates can indeed deepen access to justice and play prominent roles in aiding the efficiency of the justice system in Nigeria. The following are some practical ideas on how this can be done:

Written Advocacy

Pleadings and Processes: A well-drafted originating process or a brief statement of claim can help determine the course of a lawsuit. I have seen cases delayed for months owing to badly drafted pleadings that require numerous amendments which in turn lead to multiple adjournments. As a Senior Advocate, your chambers must be the gold standard. File pleadings that are precise, reveal a viable cause of action, and eliminate the necessity for frivolous applications. This saves the court's time and the client's money.

Written addresses: A lengthy, complicated written address is not a show of intelligence; it is rather a disservice. In *ANYANWU V FRN & ANOR* (2025) LPELR – 80716 (SC), the Supreme Court decried the situation where the Appellant filed a 70-page brief and the Respondent filed a 68-page brief. The Court described the addresses as an attempt to treat litigation as a long essay competition. The Court stressed that a good brief must be concise, clear and persuasive. See also *PORTS & CARGO HANDLING CO. LTD V MIGFO NIGERIA LTD* (2013) 3 NWLR (PT 1333) 555. The most amazing addresses I have come across are those that are concise, well-researched, and which immediately address the issues at hand. They respect the court's time and enable a quicker dispensation of justice.

Oral Advocacy:

Case Management: You owe the court a duty to ensure that cases are properly managed. Come to court prepared. If you request an adjournment, it must be for compelling reasons, not a lack of diligence. Encourage alternative dispute resolution (ADR) when applicable. Pushing every case to a full trial when it may be settled is a bottleneck in the justice system.

Honesty and integrity: Your word is your bond. When citing an authority, make sure it is still valid law and represents the principle you are asserting. Do not rely completely on Artificial Intelligence generated information. Authorities derived from Artificial Intelligence should be fact-checked. Don't mislead the court. This candour is the foundation of trust between the Bar and the Bench. A judiciary that trusts the Bar can work more effectively.

In Professional Conduct and Courtroom Etiquette: The position of Senior Advocate necessitates perfect decorum. Your conduct establishes the tone for the entire bar. Respect the Court, especially new Judges. Respect opposing counsel, especially younger ones. Avoid using intimidation or dilatory methods. You must always remember that your primary obligation is to the court and the administration of justice; while your client's interests are vital, they fall under that overriding duty.

Conclusion and Recommendations

One of the most influential attainments in the Nigerian legal profession is the Senior Advocate of Nigeria. Unquestionably, it has the potential to be a powerful tool for advancing access to justice. However, it is only when the privilege of the position is accompanied by a strong sense of responsibility and integrity that this potential becomes a reality. Wearing the silk robe is a privilege that comes with a higher duty. In the United Kingdom, King's Counsel are expected to handle pro bono cases and those of great public interest. Similarly, your new rank imposes an ethical obligation on you to pursue cases that advance the cause of justice, even if the financial advantages are minor. You must be conspicuous supporters of legal aid and pro bono programs.

As mentioned in the invitation letter, you are expected to be “beacons of light for the legal profession.” This light must shine the brightest in the pursuit of access to justice. By embracing efficiency, advocating ethics, and using your power for the public good, you will do more than just win cases; you will also improve public trust, minimise delays, and guarantee that the Judiciary fulfils its constitutional purpose.

Let us therefore strive for a future where:

- The Senior Advocate appointment process continues to be refined to be irrefutably merit-based.

- Every Senior Advocate dedicates a significant portion of their practice to pro bono service.
- The rank continues to be synonymous with the highest ethical standards, eradicating all sharp practices.

It is a long road to real access to justice. As the face of our profession, the Senior Advocate must be at the forefront, leading us there with bravery, honesty, and a steadfast dedication to the rule of law. You now bear the weight of the legacy of the great Silks that preceded you. It is a heavy responsibility, but I am convinced you are up to the task. The future of our profession rests in your hands. Shape it with intelligence, courage, and a firm commitment to justice.

I wish you a fruitful and distinguished career at the Inner Bar.

Thank you for your attention.

Hon. Justice M. A. Dipeolu FICMC, FHNr
Chief Judge of Ogun State.

